Power of Attorney, Trust, Deed

The legal words you'll hear while arranging Mom's care, and what to write down about each.

Durable, successor agent, trustee, joint account. The words on Mom's papers were written for lawyers, and now you're the one reading them. Here are nineteen you're likely to see or hear this week, each in one plain line, taken from a public source where there is one, with what to write down when it comes up.

The definitions are for following the conversation. They aren't for working out what Mom's documents do.

Who can act for Mom

Power of attorney (POA)

A legal document that allows someone else to act on a person's behalf. The person who made it is called the principal. [1] [2]

WRITE DOWN Whether Mom has one, the date on it, and where the original is.

Agent (attorney-in-fact)

The person a power of attorney names to act. Attorney-in-fact is another name for agent. [2]

WRITE DOWN Who is named, copied exactly as written.

Successor agent

Someone named to act if the agent is not able to. A successor agent has no authority while the agent is still willing and able to act. [2]

WRITE DOWN Who is named second, if anyone.

Durable

A word you may see on a power of attorney. In general it means the document may continue to be effective if the person can no longer make decisions. What it means on Mom's is for the attorney. [1]

WRITE DOWN Whether the word appears, and the sentence it appears in.

Health care power of attorney

A document that gives someone authority to make health care decisions. The person it names may be called a health care proxy. [3] [4]

WRITE DOWN Who is named, and whether the hospital or rehab has a copy.

Advance directive

A legal document that lets a person spell out decisions about end-of-life care ahead of time. [4]

WRITE DOWN Whether Mom has one, its date, and who has a copy.

Living will

Tells which treatments a person wants if they are dying or permanently unconscious. [4]

WRITE DOWN Whether there is one, and where it is.

Guardian or conservator

Someone a court can name to manage a person's money and property, if the court decides the person can't manage it alone and no power of attorney is in place. [3]

WRITE DOWN Whether a court has ever been involved for Mom. If you're not sure, write that.

Capacity

The word people use when the question is whether a person is able to make a decision herself. This sheet doesn't define it further.

WRITE DOWN What you've seen of Mom handling decisions, with dates. No conclusions.

Papers and property

Will

A document meant to reflect a person's wishes. AARP's legal checklist advises reviewing it every few years or during major life changes. [5]

WRITE DOWN Whether there is one, its date, and where the original is kept.

Revocable living trust

A legal document that gives a trustee authority over money or property in the trust if the person can't make decisions herself, and says who gets it after she dies. Other types of trusts exist. [3] [6]

WRITE DOWN The trust's full name and date, and where the whole document is.

Trustee

The person who makes decisions about money or property in a trust, and only what is in the trust. A successor trustee acts only if the trustee can no longer fill the role. [3] [6]

WRITE DOWN Who is named as trustee and as successor trustee.

Beneficiary

In a trust, a person who receives money or property from it. The word also appears on insurance policies and retirement plans. [6] [1]

WRITE DOWN Who is named, and on which paper.

Deed

The ownership paper for the house or other real property. This sheet goes no further than that.

WRITE DOWN The names on it, copied exactly, and its date.

Joint account

An account where the money is jointly owned and the joint account holder automatically gets the money when the other owner dies. The CFPB says to get legal advice before making any change to one. [3] [2]

WRITE DOWN Which accounts have a second name, whose it is, and when it was added if you know.

Gift or transfer

Money or property that has moved from Mom to someone else, or might. The CFPB tells agents to get legal advice and be very careful about decisions that may affect eligibility for Medicaid. [2]

WRITE DOWN What, to whom and when. Anything only being discussed goes on a separate list.

Estate recovery

Medicaid.gov's term for a state Medicaid program recovering, from an enrollee's estate, certain benefits it paid on that person's behalf. [7]

WRITE DOWN Your questions about it for the attorney, including any about the house.

Getting to the attorney

Elder law attorney

An attorney who specializes in elder law. In this roadmap, the person who reviews the authority, ownership, trust and transfer questions and gives the legal advice. [5] [8]

WRITE DOWN Name, phone number, and the date of your meeting.

Open question

Anything you don't know yet, can't find, or see differently as a family. Written down, it is part of what the attorney needs.

WRITE DOWN The question, and who might answer it: family, an elder law attorney, or your Medicaid planner.

What this sheet doesn't do

It defines words. It doesn't tell you what Mom's documents allow, who has authority, how anything would be treated, or whether she would qualify for anything. Nothing here is legal, financial or tax advice, and rules vary by state. Those answers come from an elder law attorney with the papers in hand.

Ready for the next step?

You can follow the words on the papers now. The planning interview asks about your family's situation and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for Mom's care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

Each numbered definition comes from the source it points to. Capacity, deed and open question have no public source behind them here, so the sheet says only where the word comes up and what to write down.

1. Consumer Financial Protection Bureau, What is a power of attorney (POA)?
2. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
3. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options
4. MedlinePlus (National Library of Medicine), Advance Directives
5. AARP, A Legal Checklist for Family Caregivers
6. Consumer Financial Protection Bureau, Managing someone else's money: Help for trustees under a revocable living trust
7. Centers for Medicare & Medicaid Services (Medicaid.gov), Estate Recovery
8. Family Caregiver Alliance, What should I do to help get my family member's legal and financial affairs in order?